

HOUSE No. 2578

The Commonwealth of Massachusetts

PRESENTED BY:

Rob Consalvo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to codify the Suffolk County Sheriff's authority to provide pre-arraignment care of arrestees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 2578

By Representative Consalvo of Boston, a petition (accompanied by bill, House, No. 2578) of Rob Consalvo for legislation relative to the Suffolk County Sheriff's authority to provide pre-arraignment care of arrestees. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to codify the Suffolk County Sheriff's authority to provide pre-arraignment care of arrestees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 34 of chapter 40 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out the first sentence and inserting in place
3 thereof the following sentence:

4 Unless a member of a regional lockup facility, a city or town containing more than five
5 thousand inhabitants shall, and any other town may, maintain a secure and convenient lockup to
6 which a person arrested without a warrant may be committed; and a magistrate may commit, for
7 further examination, a prisoner charged with a bailable offense and not recognizing, to the
8 lockup in the town where the prisoner was arrested, to any regional lockup of which that town is
9 a member, or to the lockup in a town where the court is held, if he considers it safe and
10 commodious and that expense may be saved thereby.

SECTION 2. Section 35 of chapter 40, as so appearing, is hereby amended by inserting after the first paragraph the following paragraph:

Notwithstanding the foregoing paragraph, if there is a county regional lock-up facility, the sheriff of that county shall be responsible for the appointment of the administrator of the lock-up facility who shall serve for such term as the sheriff shall determine and who can be terminated from such position with or without cause at the sole discretion of the sheriff. Written notice of the same shall be filed with the county commissioners and the clerk of each member city or town. The administrator of the regional lock-up facility shall have all the powers and duties of a keeper of the lock-up.

SECTION 3. Section 36B of chapter 40, as so appearing, is hereby amended by inserting after the word “town,” in the first sentence, the following word:

, regional,

SECTION 4. Section 36B of chapter 40, as so appearing, is hereby further amended by inserting after the word “department,” in the first sentence the following words:-

, county sheriff,

SECTION 5. Notwithstanding sections 34 to 37A of chapter 40 of the General Laws, or any other general or special law to the contrary, the sheriff of Suffolk county may establish a regional lockup facility within the site of the Suffolk county jail and house of correction, or elsewhere within the county of Suffolk, which shall be used only for the detention of persons arrested upon probable cause or warrant or a person arrested under a civil process. There shall be space made available for interviews and space assigned for use by the clerk/magistrates for bail

hearings. The regional lockup facility established under this section shall have the same function and power as a lockup established under section 34 of chapter 40. A city or town of Suffolk county, a state or federal law enforcement agency may, subject to the discretion of the sheriff of Suffolk County, become a member of the county regional lockup system by executing, with the consent of the appropriate governing body, a written agreement with the sheriff of Suffolk County. The agreement shall be filed with the corresponding city and town clerk and the secretary of state and shall set forth the details of the agreement as to the transportation and booking of prisoners.

Member police officers who are transporting a prisoner to a regional lockup facility shall, during transport, have the full authority and jurisdiction of a police officer through any city, town, or county. Member city or town police departments do not have to comply with section 36C of chapter 40. The requirements and duties set forth in sections 36A to 36, inclusive, of chapter 40 shall pertain to the regional lockup facility and the sheriff's office, except that all training provided for in section 36C of chapter 40 shall be completed within 1 year of the establishment of the facility. The regional lockup administrator and sheriffs of the Suffolk county regional lockup facility shall have the same authority, jurisdiction and duty to detain, book, hold and transport a pre-arraignment prisoner or any other prisoner to or from the regional lockup as required under chapter 40.

SECTION 6. The sheriff of Suffolk County shall be afforded all the protections of section 9 of chapter 258, as though the sheriff held office under the constitution within the meaning of this statute.

SECTION 7. This act shall take effect upon passage.